

26NWCV01029 26NWCV01029

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-06-24

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Case Number: 26NWCV01029 Hearing Date: June 24, 2026 Dept: C

GUSTAVO GONZALEZ WILLER

vs BENITO GARCIA, Case No. 26NWCV01029

Plaintiff Gustavo Gonzalez

Willer moves for Nunc Pro Tunc Order to Deem Plaintiff's Summons and Complaint

filed on March 19, 2026. Counsel for Plaintiff states that counsel

electronically filed the Summons, Complaint and Civil Case Cover Sheet on March

19, 2026. (Avila Decl., ¶2.) The clerk rejected the filing because it was

submitted to the Stanley Mosk Courthouse, which was the incorrect location. (Id.,

¶3.) On March 20, 2026, counsel resubmitted the documents to the Norwalk

Courthouse, which accepted the filing. (Id., ¶¶4-5.) The initial

submission on March 19 was within the applicable statute of limitations, but

the filing on March 20 occurred after the statute of limitations had expired. (Id.,

¶6.) Plaintiff asserts that the Summons and Complaint should be deemed filed on

March 19, 2026 because the clerk improperly rejected the documents for filing

on that date. CCP § 402, subd. (a)(3) states: "A superior court may not dismiss a case, and the clerk may not reject a case for filing, because it is filed, or a person seeks to file it, in a court location other than the location specified by local rule. However, the court may transfer the case on its own motion to the proper court location." The motion is GRANTED. The Summons and Complaint are deemed to have been filed on March 19, 2026 instead of March 20, 2026. Notice is not required.